

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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KAASHIF GRIFFIN,

Plaintiff,

-against-

11 cv 2111

Judge Rakoff

AMENDED COMPLAINT

JURY TRIAL DEMANDED

NEW YORK CITY,
POLICE OFFICER BRIAN MCALEAR,
POLICE OFFICER ZORILLA,
POLICE OFFICER DELEON and UNIDENTIFIED POLICE OFFICERS,

Defendant(s).

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The plaintiff, complaining of the defendants, by his attorney, FRED LICHTMACHER, ESQ., respectfully shows to this Court and alleges:

JURISDICTION

1 Jurisdiction is founded upon the existence of a Federal Question.

2 This is an action to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. § 1983.

3 Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343(3 & 4).

4 Venue is appropriate pursuant to 28 U.S.C. §§ 1391 (b) (1 & 2).

PARTIES

5 Plaintiff KAASHIF GRIFFIN is a resident of Duval County in the City of Jacksonville in the State of Florida.

6 Upon information and belief, that at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, (NYC) was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and that at all times relevant defendants POLICE OFFICER BRIAN MCALEAR (hereinafter "MCALEAR"), POLICE OFFICER ZORILLA (hereinafter "ZORILLA"), and POLICE OFFICER DELEON (hereinafter "DELEON")

were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

7 Upon information and belief, that at all times hereinafter mentioned, defendants MCALEAR, ZORILLA, DELEON and UNIDENTIFIED POLICE OFFICERS were employed by the defendant, NYC, as members of its police department.

8 Upon information and belief, that at all times hereinafter mentioned, the defendant, NYC, its agents, servants and employees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT (NYPD), including all the police officers thereof.

9 The NYPD, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

10 This action arises under the United States Constitution, particularly under the provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 as well as pursuant to the laws of the State of New York.

11 Each and all of the acts of the defendants alleged herein were done by the defendants, acting as state actors, acting under the color of law.

12 These claims are brought in a timely manner within three years of the date they accrued.

STATEMENT OF FACTS

13 On October 23, 2010, at approximately 12:00 a.m., plaintiff was lawfully on the premises of 340 Alexander Ave in the County of Bronx, City and State of New York with his friends, parked in the parking lot thereon.

14 Defendants MCALEAR, ZORILLA and DELEON and UNIDENTIFIED POLICE OFFICERS drove into th parking lost in an RMP at which time plaintiff was crossing Alexander

Avenue at 142nd Street on his way to the Crown Fried Chicken and Pizza restaurant on the same corner.

15 Plaintiff was stopped by the defendants and was thoroughly searched and patted down without a reasonable suspicion he had committed or was about to commit a crime or even that criminal activity was afoot. Defendants found no contraband on plaintiff's person. Defendants allowed plaintiff to go and drove back to the parking lot to speak to plaintiff's friends.

16 Plaintiff placed an order at the aforementioned restaurant and went back outside to wait for his food to be ready at which time defendants again approached plaintiff and searched his person even more thoroughly.

17 Defendants found no contraband during the second search on plaintiff's person and asked plaintiff if he was carrying anything, to which plaintiff responded he was not.

18 The defendants then asked where plaintiff was from; when plaintiff responded that he was a resident of the Bronx and he was questioned as to why he produced a Florida drivers license, a state where plaintiff also resides.

19 Defendants then thoroughly searched plaintiff's motor vehicle and found no contraband therein.

20 Plaintiff was then put in handcuffs without explanation and he was taken to the precinct where he was placed in a cell and threatened by defendants that he would be put through the system without probable cause to believe he had committed or was about to commit a crime.

21 MCALEAR then took plaintiff to a bathroom where plaintiff was forced to undergo a strip search while the door to the bathroom was open and while a female prisoner was able to witness the entire strip search.

22 Plaintiff was then placed back in jail where he remained until he was given a summons, not a desk appearance ticket, which falsely alleged he had committed the offense of Disorderly Conduct (Penal Law §240.20) and he was released.

23 Plaintiff was forced to appear in court on January 4, 2011 at which time the false charge

against him was dismissed.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
via ILLEGAL SEARCHES AND SEIZURES
AND FALSE ARREST

24 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

25 The plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff was subjected to illegal searches and seizures and a false arrest by the defendants.

26 The defendants confined the plaintiff, in that plaintiff was not free to leave, defendants intended to confine plaintiff, plaintiff was conscious of confinement, plaintiff did not consent to confinement and confinement was not otherwise privileged.

27 The defendants twice stopped, seized and searched the plaintiff, without even a reasonable suspicion he had committed or was about to commit a crime or even a reasonable belief that criminal activity was afoot.

28 As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments of the United States Constitution being more particularly plaintiff's right to be free from unwarranted illegal stops, searches and seizures as well as from arrest without probable cause.

29 The said stops searches and seizures and the false arrest was caused by the defendants, without any legal justification, without authority of the law and without any reasonable cause or belief that the plaintiff was in fact guilty of crimes and without any other legal justification.

30 By reason of the aforesaid, the plaintiff was subjected to great indignities, humiliation, anxiety, embarrassment, defamation in his community, he was prevented from conducting his normal affairs of business, his personal life was interfered with, he was forced to appear in court

and to retain an attorney, he incurred pecuniary harms and he was subjected to numerous other harms.

31 By reason of the aforesaid, the plaintiff is entitled to compensatory damages in a sum to be determined at trial, he is entitled to awards of punitive damages and attorneys' fees are appropriate pursuant to 42 U.S.C. § 1988.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT VIA
AN ILLEGAL AND UNREASONABLY CONDUCTED SEARCH
STRIP SEARCH

32 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

33 The plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff was subjected to a strip search not premised on probable cause or a reasonable suspicion he possessed drugs, a weapon or other contraband and that the search of the plaintiff who is a male was conducted in sight of a female inmate and that the search itself was conducted in an illegal and unreasonable manner.

34 The illegal and unreasonable strip search was effected by defendants without authority of law and without any necessity and that the search was performed without legal justification, without plaintiff's consent, with malice and with an intent to humiliate plaintiff and to otherwise find a justification for his illegal arrest.

35 As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth Amendment of the United States Constitution being more particularly plaintiff's right to be free from an unreasonably conducted, unnecessary and unwarranted strip search.

36 By reason of the illegal search, the plaintiff was harmed in that plaintiff was subjected to

humiliation, embarrassment, anxiety and that he was otherwise harmed.

37 By reason of the aforesaid, the plaintiff is entitled to compensatory damages in a sum to be determined at trial, he is entitled to awards of punitive damages and attorneys' fees are appropriate pursuant to 42 U.S.C. § 1988.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS
BY THE CITY OF NEW YORK i.e.,
MONELL CLAIM

38 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

39 The plaintiff's rights have been violated under the Fourth Amendment to the United States Constitution as made applicable to the states via the Fourteenth Amendment by the defendant, NYC.

40 Defendants NYC as well as unidentified police officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, despite their knowledge of the recurring problem of violations of the Constitutional rights of citizens by matters overtly similar to the instant matter, in spite of repeated complaints of similar behavior, and that there has been no meaningful attempt on the part of NYC to investigate or forestall further, similar incidents.

41 The defendant NYC intentionally operates an ineffective Civilian Complaint Review Board, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

42 The defendant NYC intentionally operates an ineffective Internal Affairs Department of the City's police department, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

43 As a result of NYC's deliberate indifference to the ineffectiveness of the CCRB and IAB, the defendants in the instant case felt free to, and did in fact, violate the plaintiff's rights.

44 It is the routine practice of NYPD officers to stop and search young, male, members of New York's minority communities on the street without probable cause.

45 It is the routine practice of NYPD officers to place young, male, members of New York's minority communities under arrest without probable cause.

46 It is the routine practice of NYPD officers to perform strip searches on young, male, members of New York's minority communities without a reasonable suspicion or probable cause to believe they possess drugs, weapons or other contraband.

47 Despite the ongoing practice of members of the NYPD set forth *supra*, the NYPD has remained deliberately indifferent to said problems and in so doing implicitly encouraged its officers to persist in these forms of illegal, unconstitutional behavior.

48 By reason of the aforementioned violations of plaintiff's constitutional rights, the plaintiff was subjected to great indignities, humiliation, embarrassment, anxiety, he was prevented from conducting his normal affairs of business, he incurred pecuniary harms and he was subjected to numerous other harms.

49 By reason of the aforesaid, the plaintiff is entitled to compensatory damages in a sum to be determined at trial and attorneys' fees are appropriate pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff demands judgment against the defendants in compensatory damages in sums to be determined at trial on all causes of action and in punitive damages for plaintiff's First and Second causes of action along with reasonable attorneys' fees pursuant to 42 U.S.C. § 1988 on all plaintiff's causes of action together with costs and disbursements of this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this Court may deem just and proper under the circumstances.

Dated: June 24, 2011
New York, New York

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